

Terms and Conditions of Use

General

1. The CSDI Portal is an online one-stop geospatial information service provided by the Development Bureau of the Government of the Hong Kong Special Administrative Region (the “Government”) to the public for obtaining geo-referenced information.
2. In these Terms and Conditions of Use of the CSDI Portal (“Terms of Use”):
 - a. “Data” include the “Spatial Data[#]” and all other contents provided by the Government and/or other organisations (such organisations are referred to as “the relevant organisations”) to the public on the CSDI Portal;
 - b. “Spatial Data” include all data in the form of digital maps, text, graphics, drawings, diagrams, photographs, compilation of data, data specifications, metadata and Application Programming Interface (“API”).

Use of Data on CSDI Portal

3. You are allowed to browse, download, distribute, reproduce, hyperlink to and print the Data for both commercial and non-commercial purposes on a free-of-charge basis on the condition that:-
 - you shall comply with the Terms of Use;
 - you shall identify clearly the Government and the CSDI Portal as the source of the Data and acknowledge the Government and the relevant organisations’ ownership of the intellectual property rights in the Data and in all copies thereof including but not limited to paper copies, digital copies and copies placed on other websites;
 - you shall indemnify the Government and the relevant organisations against any allegations or claims of infringement of the rights of any person and all costs, losses, damages and liabilities incurred by the Government and the relevant organisations, which in any case arise directly or indirectly in relation to your use, reproduction and/or distribution of the Data

Disclaimer and Limitation of Liability

4. The Data are provided by the Government and the relevant organisations to you on an “as is” and “as available” basis. No statement, representation or warranty of any kind (whether express or implied) is given by the Government or the relevant organisations in relation to the Data (including its accuracy, correctness, completeness, non-infringement, reliability, security, timeliness and appropriateness of the use of the Data in any particular circumstances). The Government or the relevant organisations shall not be liable for any errors, omissions, deficiencies, inconsistencies, misstatements or misrepresentations

(express or implied), concerning any Data, and shall not have or accept any liability, obligation or responsibility whatsoever for any loss, destruction or damage (including without limitation consequential loss, destruction or damage or other costs or expenses) howsoever arising from or in respect of any use or misuse of or reliance on the Data, or any inability to use the Data (including any breakdown, suspension, non-function, malfunction or interruption of operation of the CSDI Portal).

5. In consideration of the Government and the relevant organisations providing the Data on the CSDI Portal, by using the CSDI Portal, you hereby unconditionally accept the Terms of Use. **IF YOU DO NOT AGREE TO THE TERMS OF USE, PLEASE DO NOT USE THE CSDI PORTAL OR THE DATA PROVIDED THEREON.** The Terms of Use may be revised and/or amended from time to time by the Government or the relevant organisations without prior notice to any person. Accessing or using or linking to the CSDI Portal or using any Data after such amendments constitutes acceptance of such amendments. Please check the Terms of Use regularly for any revisions and/or amendments which may be made.
6. The Government and the relevant organisations shall not be responsible for any loss or damage whatsoever arising out of or in connection with the Data. The Government reserves the right to revise, omit or edit the Data or to suspend or terminate the provision of the Data, the CSDI Portal or any part thereof at any time in its absolute discretion without giving any reason or prior notice to any person (including you).

Linked Information and other Third-Party Websites

7. The CSDI Portal may provide or assist in providing links to third-party websites through the CSDI Portal. The links are produced solely as a convenience to users of the CSDI Portal. Provision of, or assistance in providing, any links at the CSDI Portal to any third-party website does not give rise to any statement, representation or warranty, express or implied, that the Government agrees with, approves, recommends or endorses the contents of any such third-party websites. The provision of any links to third-party websites shall not constitute any form of co-operation or affiliation with the Government of any such third parties or external websites. The Government shall not have or accept any liability, obligation or responsibility whatsoever for any loss, destruction or damage (including without limitation consequential loss, destruction or damage or other costs or expenses) howsoever arising from or in respect of your use or misuse of or reliance on, or inability to use such links to any third-party website or your use or reliance on the contents of any such third-party websites. You should refer to the terms and conditions of each such third-party website when using such website.

Privacy Policy

8. The Government may record visits to the CSDI Portal without collecting your personal data. Information relating to visits to the CSDI Portal are collected by the Government for the compilation of statistical reports and the investigation and diagnosis of problems with or concerning computer systems.

Intellectual Property Rights

9. Unless otherwise indicated, the Government is the owner of the intellectual property rights of all contents available on the CSDI Portal, including but not limited to all Data.

Governing Law

10. The Terms of Use shall be governed and construed in accordance with the laws of the Hong Kong Special Administrative Region of the People's Republic of China ("Hong Kong"). You also agree to submit to the exclusive jurisdiction of the Hong Kong Courts.

Chinese text

11. In the event of any conflict or inconsistency between the English text and the Chinese translation of these Terms of Use, the English text shall prevail.

Note

"Spatial data" is defined with reference to the definition of "Geospatial Data" published by the Open Geospatial Consortium as "location properties related to any terrestrial feature or phenomena". "Location properties" may include any information about the location or area of, and relationships among, and descriptive information about geographic features and phenomena. This includes remotely sensed data, vector map data, addresses, coordinates, etc. Note that "geospatial data" is more precise in many contexts than "geographic data" because geospatial data is often used in ways that do not involve a graphic representation, or map, created from the data."

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